

1 HOUSE BILL NO. 381

2 INTRODUCED BY E. BUTTREY

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4 A BILL FOR AN ACT ENTITLED: "AN ACT GENERALLY REVISING LAWS REGARDING STUDENT
5 EMPLOYMENT FOR HIGH SCHOOL CREDIT IN PUBLIC SCHOOLS AND NONPUBLIC SCHOOLS;
6 PROVIDING THAT 11TH AND 12TH GRADE STUDENTS MAY EARN CREDIT TOWARD HIGH SCHOOL
7 GRADUATION THROUGH EMPLOYMENT ON A PAID OR VOLUNTARY BASIS IN CERTAIN CARE
8 SETTINGS; ALLOWING A PUBLIC HIGH SCHOOL OR NONPUBLIC HIGH SCHOOL TO IMPOSE
9 CONDITIONS AND REQUIREMENTS ON WORK PERFORMED TO QUALIFY FOR HIGH SCHOOL CREDIT;
10 PROVIDING DEFINITIONS; AND PROVIDING AN EFFECTIVE DATE."

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12 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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14 **NEW SECTION. Section 1. Credit for employment -- congregate-care and child-care facilities.**

15 (1) A student who is in 11th or 12th grade at a public school or nonpublic school and who is employed on a paid
16 or voluntary basis at a congregate-care facility or child-care facility may earn one elective credit toward
17 graduation for every 250 hours worked at the congregate-care facility or child-care facility. The maximum
18 number of elective credits that may be earned toward graduation is two credits.

19 (2) The public school or nonpublic school shall develop a written application for the student
20 seeking elective credit under this section. The application form must include the following information:

- 21 (a) the student's name;
- 22 (b) the name, address, and contact information for the congregate-care facility or child-care facility
23 at which the student is employed;
- 24 (c) the name of an individual supervising the student at the congregate-care facility or child-care
25 facility;
- 26 (d) a description of the work the student is performing at the congregate-care facility or child-care
27 facility; and
- 28 (e) the number of hours the student is employed at the congregate-care facility or child-care

1 facility.

2 (3) The public school or nonpublic school shall establish:

3 (a) deadlines for submission of the application; and

4 (b) a process for verification of the number of hours the student works at the congregate-care
5 facility or child-care facility.

6 (4) The public school or nonpublic school may establish conditions and requirements on the type
7 of work the student is performing that the student shall satisfy to earn elective credit toward graduation.

8 (5) The public school or nonpublic school may not award elective credit to the student unless the
9 school approves the student's application and the student has satisfied all of the requirements under this
10 section.

11 (6) For the purposes of this section, the following definitions apply:

12 (a) "Child-care facility" means a day-care center, group day-care home, or family day-care home
13 licensed or registered under the provisions of Title 52, chapter 2, part 7.

14 (b) "Congregate-care facility" has the same meaning as:

15 (i) "community residential facility" as defined in 76-2-411;

16 (ii) "developmental disabilities facility" as defined in 53-20-202;

17 (iii) "long-term care facility" as defined in 50-5-101; and

18 (iv) "residential care facility" as defined in 50-5-101.

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20 NEW SECTION. Section 2. Codification instruction. [Section 1] is intended to be codified as an
21 integral part of Title 20, chapter 7, part 3, and the provisions of Title 20, chapter 7, part 3, apply to [section 1].

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23 NEW SECTION. Section 3. Effective date. [This act] is effective July 1, 2025.

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